

Form No: HCJD/C-121

ORDER SHEET

IN THE LAHORE HIGH COURT, RAWALPINDI BENCH,
JUDICIAL DEPARTMENT

W.P.No.1068-2014

Manzoor Hussain

Versus

Mst. Safiya Bibi etc

Sr. No. Of Order/ Proceeding	Date of Order	Order with signatures of Judge, and that of parties of counsel, where necessary.
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24.03.2015 Raja Abid Hussain, Advocate for the
petitioner.
Mr. Muhammad Altaf, Advocate for respondent.

Brief facts of the present petition are that being
a divorced daughter, respondent filed a suit against her
father/petitioner for maintenance @ Rs.15000/- per
month from November 2012. The said suit was
vehemently contested by petitioner by filing written
statement on legal and factual grounds. After framing
of issues, both the parties adduced their respective
evidence, whereafter, learned trial court vide judgment
and decree dated 04.10.2013, decreed the suit by
directing the petitioner to pay the maintenance to the
respondent @ Rs.7000/- per month from November
2012, till her marriage. Both the parties filed appeals
against the said judgment and decree which were also

dismissed vide consolidated judgment and decrees dated 11.03.2014. Hence, this writ petition.

2. Learned counsel for petitioner submits that respondent being disobedient/divorced daughter is not entitled for any maintenance as she has refused to reside with petitioner. He added that even otherwise quantum of maintenance is excessive and exorbitant as it is beyond the monetary status of the petitioner. Learned counsel for the petitioner further states that the impugned judgments and decrees are the result of misreading and non-reading of evidence, available on record, therefore, not sustainable in the eye of law being against the law and facts of the case.

3. I have heard the arguments advanced by the learned counsel for the parties and have gone through the record.

4. The petitioner has contracted second marriage, having two children from second marriage. The respondent alleged maltreatment as well as physical beating on the part of her step mother for which she has refused to reside with petitioner. Petitioner could not rebut the said allegation of maltreatment on the part of his second wife. During the evidence, the

petitioner admitted that he does not enjoy cordial / pleasant relations with his daughter. Petitioner being father was unable to show his love, affection or even intimacy for his daughter and therefore cannot expect from her to return. Under the law a daughter cannot be deprived of her right of maintenance by father during his life time when no instance was mentioned showing disobedience on the part of the daughter. Therefore, plea of the petitioner to disentitle the respondent from maintenance on account of alleged disobedience has no force.

5. During the cross examination, the petitioner admitted that he remained posted in Pakistan Ranger for 35 years and retired in 2009 as Deputy Superintendent Ranger. The petitioner is not only drawing pension of Rs.24,000/- per month but also owns an ancestral house at Mouza Narr, house at Mouza Darankot with an agricultural land. He also admitted that respondent requires medical treatment due to her weak eyesight and stomach diseases. Hence, no illegality has been committed by the courts below in determining the quantum of maintenance.

6. It is the duty/obligation of the father to maintain his daughter till her marriage and the same passes on

to her husband after her marriage. The liability of the husband continues till the subsistence of the marriage but after the dissolution of marriage, female loses her marital status and liability again shifts toward her father. Petitioner being real father of the respondent is legally and morally bound to maintain his divorced daughter. It is evident from the evidence that respondent has no source of income and her expenses are born by her real paternal uncle. This very fact has also been admitted by the petitioner in his cross examination. Therefore, plea of the petitioner that he is not bound to pay maintenance to respondent after her marriage has no force.

7. The respondent being the daughter of petitioner can claim maintenance from her father/petitioner as her marriage has already been dissolved. In this regard I am persuaded by a judgment of this Court reported as **Mian Muhammad Sabir Vs Mst. Uzma Parveen and 2 others** (PLD 2012 Lahore 154) which holds as under:

“I may here refer to Mahommedan Law by Ameer Ali, 5th Edition, at page 1367 wherein it is observed that “marriage does not necessarily absolve the father from the obligation of maintaining his daughter.” Again Asaf A.A. Fyzee in his book ‘Outline of Muhammadan Law’ (IVth Edition) at page 214, states that a “father is bound to maintain his sons until they

attain puberty and his daughters until they are married. He is also responsible for the upkeep of his widowed or divorced daughter.”

8. Furthermore, it is also established that evidence of the petitioner/plaintiff was not credit worthy being contradictory in cross-examination, therefore, learned courts below rightly discarded the evidence, in their impugned judgments and decree. Presently, before this Court as well, learned counsel for the petitioner has failed to point out any misreading or non-reading of material evidence by the courts below, warranting interference by this Court, therefore, this petition has no force. With respect to interference in concurrent findings of the courts below, the Hon’ble Supreme Court of Pakistan in a case reported as **Mst. Farhat Jabeen Vs Muhammad Safdar and others** (2011 SCMR 1073) has held that:-

“It is settled rule by now that interference in the findings of facts concurrently arrived at by the courts should not be lightly made, merely for the reason that another conclusion shall be possibly drawn, on the reappraisal of the evidence; rather interference is restricted to the cases of misreading and non-reading of material evidence which has bearing on the fate of the case.”

9. In the present case, no such defects have been pointed out by the learned counsel for petitioner in order to seek interference by this Court. Learned

courts below have thoroughly examined the entire evidence of the parties and thereafter reached at the conclusion regarding the controversy. Neither any misreading or non-reading of evidence on record nor any infirmity, legal or factual, has been pointed out in the impugned judgments and decrees passed by the learned courts below, therefore, this petition is **dismissed.**

(MASUD ABID NAQVI)
JUDGE

Approved for reporting.

JUDGE